

25NNCV06716 25NNCV06716

County: los-angeles

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Case Number: 25NNCV06716 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 8

Date: June 26, 2026

Case No: 25NNCV06716 Trial Date: October 4, 2027

Case Name: Montepeque v. Box Thai Street Food, Inc., et al.

MOTION FOR A SECURITY UNDERTAKING

[CCP § 1030]

Moving Party: Defendants, Ounruan Kaner, Samuel Kaner, and Box Thai Street Food, Inc.

Responding Party: Plaintiff, Jose Lazaro Enriquez Montepeque

RELIEF REQUESTED:

An order requiring Plaintiff Jose Lazaro Enriquez Montepeque to post a security undertaking.

CAUSES OF ACTION: from Complaint

1) Negligence

2) Permissive Use

3) Negligent Entrustment

4) Vicarious Liability

CAUSES OF ACTION: from Cross-Complaint

1) Total Indemnity

2) Implied Partial Indemnity

3) Equitable Apportionment

4) Express Indemnity and Defense

SUMMARY OF FACTS:

Jose Lazaro Enriquez Montepique ("Plaintiff") alleges that on October 3, 2024, Plaintiff was a passenger in a vehicle travelling eastbound on Victory Blvd at or near Coldwater Canyon Boulevard in North Hollywood, California. Plaintiff alleges that Defendant Ounruan Kaner ("Ounruan") negligently, carelessly, and recklessly, drove and operated her vehicle, so as to cause collisions with other vehicles ahead of her, including Plaintiff's. The Complaint alleges that Ounruan was operating the vehicle at the direction, request, supervision, management command and with the consent, permission, and knowledge of Defendants Box Thai Street Food, Inc. ("BTSF") and Samuel Kaner ("Samuel") in the course and scope of her employment or agency with BTSF.

ANALYSIS:

Where a plaintiff in an action resides out of the state, the defendant may, at any time, apply to the court for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action. (CCP, § 1030 subd. (a).) The motion shall be made on grounds that the plaintiff resides out of the state and there is a reasonable possibility that the moving defendant will obtain judgment in their favor. (CCP, § 1030 subd. (b).) The motion shall be accompanied by an affidavit in support of the grounds for the motion and setting forth the nature and amount of costs and attorney's fees the defendant has incurred and expects to incur. (Id.) The determinations of the court under this section have no effect on the determination of any issues on the merits of the action or special proceeding and may not be given in evidence nor referred to in the trial of the action or proceeding. (CCP, § 1030 subd. (f).)

"The purpose of [Section 1030] is to enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction." (Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 428.) The moving party is not required to show there is no possibility that an out-of-state plaintiff will win at trial, but rather that it is reasonably possible that the moving party will win. (Baltayan v. Estate of Getemyan (2001) 90 Cal.App.4th 1427, 1432.)

If the motion is granted, the plaintiff shall file the undertaking no later than 30 days after service of the court's order requiring it, and if plaintiff fails to file the undertaking within the time allowed, the plaintiff's action shall be dismissed as to the moving defendant. (CCP, § 1030 (d).)

Defendants move for an order requiring Plaintiff to post an undertaking as an out-of-state plaintiff under Section 1030 in the total amount of \$50,000.00. The parties do not dispute that Plaintiff resides in Fairview, New Jersey. (Shaw Decl., ¶ 5.)

Plaintiff objects to the motion on grounds that Defendants fail to show that there is a reasonable probability that they will obtain a judgment in this matter, fail to substantiate the costs and fees they are requesting in their motion, and on the grounds that Plaintiff is indigent so any bond requirement should be waived.

Defendants present excerpts of testimony from non-party Jason Benjamin Hayes. Hayes' testifies that the vehicle in which Plaintiff was a passenger swerved from the left-turn only lane into the adjacent lane striking Defendants' vehicle. (Mot., pp. 5:18-6:3.) This testimony is consistent with Defendants' discovery responses in which Defendants assert that Plaintiff's vehicle, not Defendants', made an unsafe lane change causing the collision. (Mot., p. 5:10-15.) Defendants argue that thus, there is a reasonable probability that a jury would render a verdict in Defendants' favor.

In the Complaint, Plaintiff alleges that that Defendant Ounruan made an unsafe lane change and caused the collision. (Compl., ¶ 18.) Plaintiff asserts that the parties contest "which party had the right of way and which party made the unsafe lane change." (Opp., p. 5:4-5.) Plaintiff presents evidence that "Plaintiff's vehicle was ahead of Defendants' and established in the lane where the accident occurred, whereas Defendants' vehicle is shown to be crossing the lane divider." (Opp., p. 5:7-9; Gasway Decl, Exs B-C.)

The parties present conflicting evidence regarding which driver made an unsafe lane change, had the right of way, and ultimately bears responsibility for the collision. In light of these disputed factual issues, the Court finds that Defendants have failed to demonstrate that there is a reasonable possibility that they will prevail on their asserted causes of action.

The motion is DENIED.

RULING:

Defendants' Motion for a Security Undertaking is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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